

Data Sovereignty, Solved

A Four-Step Workbook for Classifying, Assessing,
and Protecting Your Tribe's Digital Estate

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How to Use This Workbook

Your tribe's digital estate is the collection of records your government holds in computers, cloud and artificial intelligence services, and vendor systems. Enrollment rolls, health information, cultural and language archives, financial records, land and geospatial data, and court records are examples of sovereign assets in the same way that land, water, language, and cultural artifacts are. They will be passed to the next generations of tribal leaders and citizens. How they are classified, where they are stored, who can reach them, what can be done with them, and what protects them are governance decisions, not just information technology decisions.

This workbook is a getting started guide that walks you through four high-level steps that result in an action plan for thoughtfully securing your tribe's digital estate for the future. Each step produces one starter page you fill in. Taken together, the four pages are an initial action plan you can begin to act upon yourself, starting today, and then hand to your team, or bring to a partner for help if you need help implementing the plan.

Step 1, Classify. Decide what data you hold and how much it matters.

Step 2, Assess. Compare what protects that data today against what it should have.

Step 3, Map. Turn each gap into the specific protections and questions to bring to your vendors.

Step 4, Act. Sort the fixes into what you can do now, soon, and later.

You do not need to be a technologist to use this framework. Where a term matters, it is explained in plain words. Fill in the blank rows with your own data types, specific to your own tribe, and in your own words. This is a starting point, not a finished governance code, and it is meant to be revised in your own voice, for your own priorities, and ultimately adapted into a solution that works for your own tribal community.

A note on the sovereignty lens. Standard data classification asks only how sensitive a record is and which regulation covers it. *Sovereign* classification adds two questions. First, what is our authority over this data and our relationship to it? Second, what happens to our people and to our standing as a nation if we lose control of it, whether it is breached, sold, handed over under a subpoena, or used to train a company's artificial intelligence without our consent?

A useful test is the seven generations test: *would we be comfortable handing this data, and the way we cared for it, to leaders seven generations from now?*

Step 1: Classify Your Digital Estate

Why This Step

You cannot protect what you have not named, identified, or inventoried. Before conducting any analysis or choosing any control, list what data you hold, where it is stored, who can reach/view/use it, and how much it matters. This step is crucial as it turns a vague and often unsettling sense of risk into a specific inventory from which you can take action.

How to Rate Each Category

Rate every category on two simple scales.

Sovereignty significance. How central is this data to who we are as a nation. Consider cultural, ceremonial, political, and identity weight, and the strength of our authority claim over it. High, Medium, or Low.

Exposure risk. How much harm is done to our members and our nation if this data leaves our hands. Consider breach, sale, subpoena, and misuse. High, Medium, or Low.

Where a category is *High* on both, it belongs in the top tier and will earn the strongest protection in Step 3. Where it is *Low* on both, routine protection is enough.

Placeholder Tiers

Rename these in your own voice. Some records inside a lower tier can rise to Tier 1 on their own, for example the map coordinates of a sacred site.

Tier 1, highest. Enrollment and citizenship, health information, cultural and language archives, sacred site locations. Tier 2, sensitive. Financial and economic data, land and geospatial records, law enforcement and court records. Tier 3, internal. Day-to-day operations and staff records. Tier 4, public. Information you have already published.

Worksheet 1: Classification Inventory

One worked row is filled in as an example. Replace it or keep it, then complete the rest and add your own categories in the blank rows.

Data category	What it includes	Where it is stored now	Who can access it now	Sovereignty Significance (H/M/L)	Exposure Risk (H/M/L)	Assigned Tier
Enrollment and citizenship (example)	Citizenship rolls, lineage documentation, member contact details	Vendor customer relationship system, plus a spreadsheet on a shared drive	Enrollment staff and the vendor's support team	H	H	1
Enrollment and citizenship						
Health information						
Cultural and language archives						
Financial and economic						
Land and geospatial						
Law enforcement and courts						
Internal operations						
Public information						

Step 2: Assess Where You Stand

Why This Step

Now that each category has a tier, look at what actually protects it today and where that falls short. Start with your Tier 1 and Tier 2 categories. Those are where a gap does the most harm and where your effort pays off first.

What to Look at for Each Category

Ask five plain questions about the data as it sits today.

- Is it encrypted, both while stored and while moving between systems?
- Who holds the keys that unlock it, you or the vendor?
- Who can open the records, and is that limited to the people who truly need them?
- Does any vendor contract allow the company to use this data to train or improve its artificial intelligence?
- If you left the vendor tomorrow, could you get all of this data back, in a usable form, quickly?

Write down the honest current answer, then the answer the tier calls for, then the gap between them.

Worksheet 2: Gap Analysis

Work top tiers first. Rank the gaps so the worst sits at the top.

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Step 3: Map Protections to Each Gap

Why This Step

This is the bridge from principle to practice. Each gap from Step 2 becomes a specific protection to put in place and a specific question to ask a vendor. You do not need to know product names to do this. You need to know what to require and what to ask for.

The Seven Protection Families

These are the several levers that protect any data in the cloud. The higher the tier, the stronger the setting you should require.

1. **Where the data is stored and whose law applies.** Require the vendor to name exactly where data is stored (physically; and don't overlook backup copies) and to recognize tribal jurisdiction in the contract. Keep in mind that a United States company can be legally ordered to hand over data no matter which country or region it is stored in, so location alone is not sovereignty-friendly by default. For Tier 1, keep the authoritative copy on tribal-controlled systems where you can, and let cloud tools view it rather than own it.
2. **Encryption and who holds the keys.** All data should be encrypted while stored (at-rest) and while moving (in-transit). The deciding question for sensitive data is who holds the keys used for encryption. For Tier 1, the tribe should hold the keys outside the vendor's reach, so the vendor cannot read the data or hand over a readable copy, and the tribe can cut off access by withholding the key. For Tier 2, at a minimum the tribe should manage its own keys. For Tier 3 and 4, the vendor's standard encryption is usually enough.
3. **Access control and identity.** Limit who can open each data record to only the people who need it (least-privilege), require strong sign-in, and for Tier 1 make sure vendor support staff in other locations cannot quietly reach the data for administrative or support purposes.
4. **Artificial intelligence training opt-out.** The contract must forbid the vendor from using your data, or patterns or derivatives drawn from it, to train or improve its models. Insist on this in contractual writing for Tier 1 and Tier 2, and keep the right to check that it is honored.
5. **Third-party and sub-processor access.** Know every other company that can touch your data through the vendor, approve them, and require notice before any new one is added.
6. **Portability and exit.** Before you sign, know how you would leave. Require that you can export all your data in open, standard formats within a set number of days, at no punishing cost.
7. **Audit and monitoring.** Require a record of who accessed what, sent to storage the tribe controls, and require the vendor to notify you of any breach and of any government request for your data, to the fullest extent the law allows.

Questions to Bring to Any Vendor

Plain questions that reveal whether a product actually protects sovereign data.

- After we give you our encryption key, where does it live, and can you be legally forced to use it to unlock our data without telling us?
- Is there an option where you never hold our keys at all?
- Does your standard contract let you use our data to train or improve your artificial intelligence, and will you remove that clause in writing?
- If we leave, how do we get all of our data out, in what format, and how quickly?
- Who else, including your support staff and any subcontractors, can see our data, and will you tell us before you respond to a government request?

Worksheet 3: Controls map

Turn each gap from Step 2 into an action.

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Step 4: Act on a Prioritized Plan

Why This Step

A plan you can start this month beats a perfect plan that waits for a full governance code and set of binding vendor contracts. Sort your fixes by how soon you can do them and how much risk they remove.

The Three Time Horizons

Now. Things you already control, such as a configuration change, a policy update, or turning on a setting. Start these in your first available work cycle.

Soon. Things that need a vendor conversation or a contract change, such as adding an artificial intelligence opt-out or an exit clause at renewal.

Later. Things that need budget or new infrastructure, such as standing up tribal-controlled key storage or moving a system of record onto tribal-controlled systems.

Do the high-impact, low-effort items first. Sequence the rest by risk reduced.

Worksheet 4: Action Plan

[illegible]

The Sovereignty Journey Ahead

You now have four pages that move from principles to action: an inventory, a gap analysis, a controls map, and a prioritized, repeatable plan. You can run this yourself, share it with your technology team as homework, or bring it to a partner for hands-on help.

The Open Sovereignty Lab is a shared, open-source home we've created for these types of practices. Our work is sovereignty first, technology second, and vendor agnostic. We do not sell a platform. We help tribal nations govern their data on their own terms, and we credit and cite the experts and communities whose ideas make this work stronger. It is our sincere hope that you can use any or all of our work to expand the work you are already doing on behalf of your tribal communities. We are firm believers in the seven generations principle and we are committed to helping empower tribes to make the best decisions they can now on behalf of those generations to come long after us.

To go deeper, or if your tribe is in a position to give back by contributing new work, reach the Open Sovereignty Lab at info@opensovereigntylab.org or OpenSovereigntyLab.org.

Or if you need a strong technology consulting and digital services partner, our government contract team at 580 Strategies would be honored to explore ways we can help move your mission forward. You can contact us at: info@580Strategies.com or 580.Digital to learn more.

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Open Sovereignty Lab acknowledges and affirms tribal data sovereignty as the governing principle for all Indigenous data, knowledge, and information systems. This framework is intended as a starting and sharing point, not a final word. We encourage tribal nations and communities to adapt, localize, and assert their own governance over any material derived from this work.